By October 1947, two months after Britain withdrew its forces, Muslim peasants of Poonch refused to pay their land taxes to Hindu landlords, whose guards opened fire. The Muslims fled to Pakistan, where tribal frontier Pathans were inflamed by their reports and volunteered to help them liberate Kashmir from Hindu control. British officers who had opted to remain in Pakistan packed thousands of such Pathans into trucks that headed down Baramulla Road into Kashmir. They quickly seized Muzaffarabad, the subsequent capital of Pakistan's Azad (Free) Kashmir.

India's government in New Delhi responded swiftly to this invasion of Prime Minister Pandit Nehru's "home" state of Kashmir. Though Nehru's great-grandfather had left Kashmir to move with his family to Delhi, Nehru always considered Kashmir his ancestral home, and he ordered India's First Sikh Battalion flown up to Srinagar to defend it less than forty-eight hours after news of the Pakistani invasion reached Delhi. India's troops secured the airport and drove the undisciplined Pathans back to Muzaffarabad. Jinnah then tried to send two of Pakistan's regular divisions into the battle, but was blocked by Field Marshal Claude Auchinleck, supreme commander of British Commonwealth troops of both dominions, who flew to Pakistan to warn Jinnah that unless he withdrew his order, he would have to order every British officer in Pakistan's army to "stand down." Since Pakistan at that time relied much more heavily than India on British officers, commanded by General Sir Douglas Gracey, Jinnah was forced to relent. Pakistani volunteer soldiers in mufti were sent in, but proved an insufficient force to drive out the Indian army.

In mid-December 1947, Nehru told his cabinet that "what is happening in Kashmir State is not merely a frontier raid but a regular war." On 3 January 1948, then, India brought charges of Pakistan's aggression to the UN Security Council, calling upon it to "take immediate and effective action" to stop Pakistan.[2] The ensuing Security Council debate over Kashmir became one of its longest and most bitterly argued marathons. Pakistan's first foreign minister, Muhammad Zafrullah Khan, opened the debate by insisting that the conflict in Kashmir was merely an extension internationally of British India's Hindu-Muslim communal conflicts of the past century. The only appropriate way, he insisted, of resolving the conflict was to ascertain the will of Kashmir's population by taking an impartial plebiscite in that state, to be administered by UN representatives.